法學英文主題分類彙整範例

主題：契約（Contract）

詞彙與中英對照

- contract：契約
- offer：要約
- acceptance：承諾
- consideration：對價
- breach：違約
- void：無效
- enforceable：可執行的

例句與題型

- There is a valid contract, because there is mutual assent of legally capable parties.
    - 有效契約須有雙方意思表示且具備行為能力。
- Adam agreed to sell and Rosa agreed to buy Adam’ s house. Unfortunately, Adam did not know that his house has burnt down two days ago. Under Article 246 of R.O.C. Civil Code, the contract is void.
    - 買賣標的物滅失，契約無效。

主題：侵權（Tort）

詞彙與中英對照

- tort：侵權行為
- negligence：過失
- liability：責任
- damages：損害賠償
- vicarious liability：代位責任
- strict liability：無過失責任

例句與題型

- Oliver liked to play music extremely loud and it always woke up Mr. and Mrs. Smith at midnight. Oliver was liable to Mr. and Mrs. Smith for nuisance.
    - 噪音干擾屬於侵權行為中的妨害安寧（nuisance）。
- In certain circumstances, A can be held liable for the torts committed by B simply because B is A’ s employee. This is vicarious liability.
    - 僱主對僱員職務上行為負連帶責任。

主題：訴訟與程序（Litigation & Procedure）

詞彙與中英對照

- plaintiff：原告
- defendant：被告
- appeal：上訴
- judgment：判決
- service of process：送達程序
- statute of limitations：時效

例句與題型

- The party who appeals a decision is called appellant.
    - 上訴人稱為 appellant。
- Jonathan may assert statute of limitations as a defense and refuse to pay.
    - 時效抗辯可作為拒絕給付的理由。

主題：刑法（Criminal Law）

詞彙與中英對照

- crime：犯罪
- guilty：有罪
- parole：假釋
- probation：緩刑
- sentencing：量刑

例句與題型

- According to Article 77 of the R.O.C. Criminal Code, anyone who is sentenced to a certain number of years' imprisonment may be considered for parole after he has served half of his sentence.
    - 刑期服滿一半可申請假釋。

主題：公司法與商事法（Company & Commercial Law）

詞彙與中英對照

- shareholder：股東
- director：董事
- supervisor：監察人
- board of directors：董事會
- merger：合併
- appraisal right：股份收買請求權

例句與題型

- In a public company limited by shares, the shareholders' meeting has the power to elect or remove a director.
    - 股東會有權選任或解任董事。

主題：其他常見題型與用語

- spoliation of evidence：證據湮滅
- freedom of expression：表意自由
- referendum：公民投票
- liquidated damages：約定損害賠償
- privity of contract：契約相對性

> 本檔案為法學英文題目與選項主題分類彙整範例，實際彙整時請依年度題目內容補充、調整主題與詞彙。